



Bill Number: H.B. 2307

Angius Floor Amendment

**Reference to: HEALTH AND HUMAN SERVICES
Committee amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires the Department of Health Services (DHS) to pay all costs of nonpsychiatric medical services provided to a dangerous, incompetent and nonrestorable defendant placed at the Arizona State Hospital (ASH) forensic campus, rather than the defendant's originating county.
2. Reduces, from three to one, the maximum number of defendants who may be placed at ASH and requires the defendant to originate from a county with a population of less than 400,000 persons.
3. Requires, the Superintendent of ASH to inform each county's presiding judge, county attorney and chairperson of the board of supervisors that ASH may not accept additional defendants after reaching, or when expected to reach, its maximum funded capacity.
4. Specifies that DHS is not required to reimburse a county for costs associated with deferred ASH admission for a person found guilty except insane if the deferral is due to current placement of a dangerous, incompetent and nonrestorable defendant.
5. Adds two representatives of a statewide association representing county supervisors to the membership of the Study Committee on Secure State Mental Health Facilities and modifies recommendation requirements.

ANGIUS FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2307
(Reference to HEALTH AND HUMAN SERVICES Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-4521, Arizona Revised Statutes, is amended to
3 read:

4 13-4521. Dangerous and incompetent defendants; proof evident
5 hearing; commitment trial; disposition; findings;
6 annual report

7 A. If a court enters an order pursuant to section 13-4517,
8 subsection A, paragraph 4, the court shall hold a hearing within ten days
9 after the order is issued to determine if the proof is evident or the
10 presumption great that the defendant committed the act that constitutes a
11 serious offense as defined in section 13-706. If the court does not find
12 the proof is evident or the presumption great that the defendant committed
13 the act, the court shall proceed pursuant to section 13-4517, subsection
14 A, paragraph 1, 2 or 3.

15 B. If the court does find the proof is evident or the presumption
16 great pursuant to subsection A of this section, the court shall hold a
17 trial within one hundred twenty days after the court issued the order

1 pursuant to section 13-4517, subsection A, paragraph 4 to determine if the
2 defendant is dangerous and should be involuntarily committed. Unless the
3 state or defendant requests a jury trial, a trial held pursuant to this
4 subsection shall be before the court.

5 C. The Arizona rules of evidence and the Arizona rules of civil
6 procedure apply to proceedings held pursuant to this section, except that
7 the court may consider evidence that is not admissible under the Arizona
8 rules of evidence when making a determination pursuant to subsection A of
9 this section.

10 D. If there has not been a previous evaluation to determine whether
11 the defendant is dangerous, the defendant shall be examined by mental
12 health experts in accordance with the requirements of section 13-4509,
13 subsection D to determine if the defendant should be considered dangerous.
14 The state and the defendant may each retain a mental health expert to
15 examine the defendant and present the defendant's mental health evaluation
16 at the trial.

17 E. At a trial to determine if the defendant is dangerous, the state
18 shall establish beyond a reasonable doubt that the defendant is dangerous
19 and should be involuntarily committed. If the factfinder does not find
20 that the defendant is dangerous or does not find that the defendant should
21 be involuntarily committed, the court shall proceed pursuant to section
22 13-4517, subsection A, paragraph 1, 2 or 3.

23 F. If the factfinder finds that the defendant is dangerous and
24 should be involuntarily committed, the court shall dismiss the charges
25 against the defendant without prejudice and order the defendant to be
26 committed to a secure state mental health facility. The defendant shall
27 receive education, care, supervision and treatment to render the defendant
28 either competent or nondangerous.

29 G. If the court issues [OR HAS ISSUED] a commitment order pursuant
30 to this section:

31 1. [UNTIL DECEMBER 31, 2031,] IF THE DEFENDANT HAS BEEN DETERMINED
32 TO BE DANGEROUS AND INCOMPETENT AND IS INVOLUNTARILY COMMITTED TO A SECURE
33 STATE MENTAL HEALTH FACILITY PURSUANT TO THIS SECTION BUT THERE ARE NO
34 BEDS AVAILABLE IN A SECURE STATE MENTAL HEALTH FACILITY IN THIS STATE,
35 [THE DEPARTMENT OF HEALTH SERVICES SHALL CONTRACT WITH A SECURE MENTAL
36 HEALTH FACILITY OUTSIDE OF THIS STATE OR A FACILITY THAT IS ABLE TO
37 PROVIDE EQUIVALENT SERVICES OUTSIDE OF THIS STATE TO PROVIDE SERVICES TO
38 THE DEFENDANT AS REQUIRED BY THIS SECTION AND TO ABIDE BY THE REQUIREMENTS
39 PRESCRIBED IN TITLE 36, CHAPTER 40. THE DEPARTMENT OF HEALTH SERVICES IS
40 RESPONSIBLE FOR ALL CONTRACTUAL COSTS ASSOCIATED WITH OUT-OF-STATE
41 PLACEMENT AND SERVICES FOR A DEFENDANT PURSUANT TO THIS SUBSECTION]
42 [SECTION 13-4521.01 APPLIES TO THE PLACEMENT OF THE DEFENDANT, BUT ALL
43 OTHER PROVISIONS OF THIS SECTION REMAIN APPLICABLE TO THE DEFENDANT].

44 ~~1.~~ 2. All further proceedings for the defendant's continued
45 treatment and the circumstances under which the defendant may be released
46 shall be conducted pursuant to title 36, chapter 40.

1 ~~2.~~ 3. The order shall require that the defendant remain committed
2 to a secure state mental health facility until any of the following
3 occurs:

4 (a) The court finds that the defendant is competent to stand trial.

5 (b) The court finds that the defendant is no longer dangerous.

6 H. A commitment order issued pursuant to this section may not be in
7 effect for more than the presumptive sentence the defendant could have
8 received for the highest charged offense pursuant to section 13-702 or
9 13-703, section 13-704, subsection A, B, C, D or E, section 13-705,
10 section 13-706, subsection A, section 13-708, subsection D or section
11 13-751 or any section for which a specific sentence is authorized. In
12 making this determination, the court may not consider the sentence
13 enhancements under section 13-703 or 13-704 for prior convictions. The
14 court shall consider all time a defendant has been in custody, including
15 pretrial detention and custody under title 36.

16 I. The court shall retain jurisdiction over a defendant who is
17 committed pursuant to this section until the court discharges the
18 defendant from treatment. If a defendant is discharged or released on the
19 expiration of a commitment order issued pursuant to this section, the
20 medical director of the secure state mental health facility from which the
21 defendant is discharged or released or the state may file a petition
22 stating that the defendant requires further treatment pursuant to title
23 36, chapter 5 or the appointment of a guardian pursuant to title 14.

24 J. Findings by the court made pursuant to this section and, except
25 as provided in section 13-4508, any statements made by the defendant
26 during an examination by a mental health expert pursuant to section
27 13-4509 are inadmissible in any proceeding other than a proceeding under
28 title 36, chapters 5 and 40.

29 K. A person who is involuntarily committed to a secure state mental
30 health facility pursuant to this section shall receive credit for all time
31 spent under the jurisdiction of the secure state mental health facility if
32 the person is found competent to stand trial and is subsequently sentenced
33 to the state department of corrections for any of the charges that were
34 the basis for the involuntary commitment.

35 L. The court shall annually report the following information for
36 the previous year to the Arizona criminal justice commission:

37 1. The number of court orders for a trial pursuant to section
38 13-4517, subsection A, paragraph 4, including the number of jury trials
39 that were held.

40 2. The number of defendants who are committed after a trial
41 pursuant to this section.

42 3. The number of committed defendants who are conditionally
43 released to a less restrictive alternative.

44 4. The number of committed defendants who are restored to
45 competency or determined to not be dangerous and who are discharged.

1 <<Sec. 2. Title 13, chapter 41, Arizona Revised Statutes, is
2 amended by adding section 13-4521.01, to read:

3 13-4521.01. Dangerous and incompetent defendants; placement
4 until December 31, 2031; reports

5 [A. UNTIL DECEMBER 31, 2031, IF THE COURT ISSUES OR HAS ISSUED A
6 COMMITMENT ORDER PURSUANT TO SECTION 13-4521 AND THERE ARE NO BEDS
7 AVAILABLE IN A SECURE STATE MENTAL HEALTH FACILITY IN THIS STATE, THE
8 ARIZONA STATE HOSPITAL MAY ACCEPT THE DEFENDANT FOR CARE AND TREATMENT ON
9 ITS FORENSIC CAMPUS IF ALL OF THE FOLLOWING APPLY:

10 1. THE DEFENDANT HAS BEEN DETERMINED TO BE DANGEROUS AND
11 INCOMPETENT AND IS INVOLUNTARILY COMMITTED TO A SECURE STATE MENTAL HEALTH
12 FACILITY PURSUANT TO SECTION 13-4521.

13 2. THE DEFENDANT HAS RECEIVED AT LEAST TWELVE MONTHS OF RESTORATION
14 TO COMPETENCY SERVICES.

15 3. THE DEFENDANT HAS A PRIMARY PSYCHIATRIC CONDITION.

16 B. THE ORDER SHALL:

17 1. REQUIRE THAT THE DEFENDANT REMAIN COMMITTED TO THE ARIZONA STATE
18 HOSPITAL PURSUANT TO THIS SECTION OR A SECURE STATE MENTAL HEALTH FACILITY
19 UNTIL EITHER OF THE FOLLOWING OCCURS:

20 (a) THE COURT FINDS THAT THE DEFENDANT IS COMPETENT TO STAND TRIAL.

21 (b) THE COURT FINDS THAT THE DEFENDANT IS NO LONGER DANGEROUS.

22 2. INCLUDE AUTHORIZATION FOR THE ARIZONA STATE HOSPITAL TO PROVIDE
23 NECESSARY TREATMENT TO THE DEFENDANT, INCLUDING THE ADMINISTRATION OF
24 MEDICATIONS AS CLINICALLY INDICATED, AND TO ENSURE THE SAFETY AND SECURITY
25 OF THE FACILITY.

26 3. ALLOW THE ARIZONA STATE HOSPITAL TO ISSUE A STANDING ORDER FOR
27 THE APPLICATION OF RESTRAINTS TO THE DEFENDANT AS NECESSARY TO ENSURE THE
28 SAFETY AND SECURITY OF THE FACILITY.

29 C. IF THE MEDICAL DIRECTOR DETERMINES THAT A DEFENDANT WHO WAS
30 DETERMINED TO BE DANGEROUS, INCOMPETENT AND NONRESTORABLE PURSUANT TO
31 SECTION 13-4521 MAY NO LONGER BE DANGEROUS OR INCOMPETENT, THE DISPOSITION
32 OF THE PROCEEDINGS SHALL BE PURSUANT TO TITLE 36, CHAPTER 40.

33 D. AS SOON AS PRACTICABLE, ON THE LICENSURE OF A SECURE STATE
34 MENTAL HEALTH FACILITY FOR THE CARE AND TREATMENT OF DEFENDANTS WHO ARE
35 COMMITTED UNDER SECTION 13-4521, THE ARIZONA STATE HOSPITAL SHALL
36 COORDINATE THE TRANSFER OF ANY DEFENDANT WHO IS ADMITTED TO THE ARIZONA
37 STATE HOSPITAL PURSUANT TO THIS SECTION TO THE SECURE STATE MENTAL HEALTH
38 FACILITY.

39 E. THE ~~{{ORIGINATING COUNTY FROM WHICH}}~~ ~~{{COSTS OF}}~~ A DEFENDANT
40 ~~{{WHO}}~~ IS DETERMINED TO BE DANGEROUS, INCOMPETENT AND NONRESTORABLE AND
41 ~~{{WHO IS}}~~ SUBSEQUENTLY ADMITTED TO THE ARIZONA STATE HOSPITAL PURSUANT TO
42 THIS SECTION SHALL ~~{{REIMBURSE}}~~~~{{BE PAID BY}}~~ THE DEPARTMENT OF HEALTH
43 SERVICES~~{{,}}~~ ~~{{FOR ONE HUNDRED PERCENT OF}}~~ ~~{{INCLUDING}}~~ THE COSTS FOR
44 ~~{{ANY}}~~ ~~{{ALL}}~~ NONPSYCHIATRIC OR NONMENTAL HEALTH DISORDER-RELATED
45 SERVICES PROVIDED TO THE DEFENDANT DURING THE DEFENDANT'S
46 ADMISSION~~{{,}}~~~~{{, INCLUDING:~~

47 ~~1. PHYSICAL HEALTH CARE SERVICES.~~

1 ~~2. SERVICES TO TREAT CO-OCCURRING AND COMORBID MEDICAL CONDITIONS.~~
2 ~~3. SERVICES TO TREAT DIAGNOSED NEUROCOGNITIVE DISORDERS.~~
3 ~~4. SERVICES TO TREAT DIAGNOSED NEURODEVELOPMENTAL DISORDERS.}}~~
4 F. THE ARIZONA STATE HOSPITAL MAY NOT ACCEPT MORE THAN ~~{{THREE~~
5 ~~DEFENDANTS}}~~ {{ONE DEFENDANT}} WHO ~~{{HAVE}}~~ ~~{{HAS}}~~ A PRIMARY PSYCHIATRIC
6 CONDITION~~{{,}}~~ ~~{{AND}}~~ WHO ~~{{HAVE}}~~ ~~{{HAS}}~~ BEEN DETERMINED TO BE
7 DANGEROUS, INCOMPETENT AND NONRESTORABLE PURSUANT TO SECTION 13-4521 ~~{{AND~~
8 WHOSE ORIGINATING COUNTY HAS A POPULATION OF LESS THAN FOUR HUNDRED
9 THOUSAND PERSONS}} FOR CARE AND TREATMENT ON ~~{{ITS}}~~ ~~{{THE ARIZONA STATE~~
10 HOSPITAL'S}} FORENSIC CAMPUS. IF THE ARIZONA STATE HOSPITAL REACHES, OR
11 IS EXPECTED TO REACH, THE MAXIMUM FUNDED CAPACITY FOR FORENSIC PROGRAMS,
12 THE SUPERINTENDENT SHALL INFORM ~~{{ALL COUNTIES}}~~ ~~{{EACH COUNTY'S PRESIDING~~
13 JUDGE, COUNTY ATTORNEY AND CHAIRPERSON OF THE BOARD OF SUPERVISORS}} THAT
14 THE ARIZONA STATE HOSPITAL MAY NOT ACCEPT ANY ADDITIONAL DEFENDANTS
15 PURSUANT TO SECTION 13-502, 13-3992 OR 13-4521 OR THIS SECTION AND THE
16 FOLLOWING APPLY:
17 1. NOTWITHSTANDING SECTION 13-3992, SUBSECTION E, THE DEPARTMENT OF
18 HEALTH SERVICES ~~{{MAY}}~~ ~~{{IS NOT REQUIRED TO}}~~ REIMBURSE A COUNTY FOR THE
19 ACTUAL COSTS OF EACH DAY AN ADMISSION IS DEFERRED FOR A PERSON WHO HAS
20 BEEN FOUND GUILTY EXCEPT INSANE PURSUANT TO SECTION 13-502 ~~{{IF THE~~
21 DEFERRAL IS DUE TO A DEFENDANT ADMITTED TO THE ARIZONA STATE HOSPITAL
22 PURSUANT TO THIS SECTION}}.
23 2. NEITHER THE DEPARTMENT OF HEALTH SERVICES OR ITS OFFICERS ARE
24 LIABLE FOR OR SUBJECT TO CIVIL SANCTIONS AS A RESULT OF THE ARIZONA STATE
25 HOSPITAL'S INABILITY TO ADMIT DEFENDANTS DUE TO REACHING THE MAXIMUM
26 FUNDED CAPACITY.
27 G. BEGINNING OCTOBER 1, 2026 AND EVERY SIX MONTHS THEREAFTER, THE
28 ADMINISTRATIVE OFFICE OF THE COURTS SHALL REPORT TO THE SPEAKER OF THE
29 HOUSE OF REPRESENTATIVES, THE PRESIDENT OF THE SENATE, THE GOVERNOR AND
30 THE DIRECTOR OF THE DEPARTMENT OF HEALTH SERVICES ALL OF THE FOLLOWING:
31 1. THE NUMBER OF DEFENDANTS WHO WERE DETERMINED TO BE INCOMPETENT
32 TO STAND TRIAL AND NONRESTORABLE.
33 2. THE NUMBER OF TRIALS INITIATED TO DETERMINE IF A DEFENDANT IS
34 DANGEROUS PURSUANT TO THIS SECTION.
35 3. THE NUMBER OF DEFENDANTS WHO WERE DETERMINED TO BE DANGEROUS
36 PURSUANT TO THIS SECTION.
37 4. THE NUMBER OF DEFENDANTS WHO WERE DETERMINED TO BE EITHER
38 INCOMPETENT TO STAND TRIAL AND NONRESTORABLE OR INCOMPETENT, NONRESTORABLE
39 AND DANGEROUS AND WHO WERE DIAGNOSED WITH A NEUROCOGNITIVE OR
40 NEURODEVELOPMENTAL DISORDER, INCLUDING A TRAUMATIC BRAIN INJURY, DEMENTIA
41 OR AUTISM.]]>>
42 <<Sec. 3. [Delayed repeal](#)
43 [Section 13-4521.01, Arizona Revised Statutes, as added by this act,
44 is repealed from and after December 31, 2031.]]>>

1 <<Sec. 4. Legislative study committee on secure state mental
2 health facilities; membership; powers and duties;
3 delayed repeal; definition

4 [A. The legislative study committee on secure state mental health
5 facilities is established consisting of the following members:

6 1. Three members of the senate who are appointed by the president
7 of the senate, not more than two of whom are members of the same political
8 party.

9 2. Three members of the house of representatives who are appointed
10 by the speaker of the house of representatives, not more than two of whom
11 are members of the same political party.

12 3. The director of the Arizona health care cost containment system
13 or the director's designee.

14 4. The superintendent of the Arizona state hospital or the
15 superintendent's designee.

16 5. The attorney general or a member of the attorney general's staff
17 who has experience in civil commitment procedures under title 36, Arizona
18 Revised Statutes, and commitment procedures under title 13, Arizona
19 Revised Statutes.

20 6. One member who is from a county attorney's office in a county
21 with a population of at least one million five hundred thousand persons
22 and who is appointed by the speaker of the house of representatives.

23 7. One member who is from a county attorney's office in a county
24 with a population of less than one million five hundred thousand persons
25 and who is appointed by the president of the senate.

26 8. At least two private sector providers who each have experience
27 in operating behavioral health facilities, one of whom is appointed by the
28 speaker of the house of representatives and one of whom is appointed by
29 the president of the senate{{[_]}}

30 9. One member who is a public defender in a county with a
31 population of at least one million five hundred thousand persons and who
32 is appointed by the president of the senate.

33 10. One member who is a public defender in a county with a
34 population of less than one million five hundred thousand persons and who
35 is appointed by the speaker of the house of representatives.

36 11. One member who is from the administrative office of the courts.

37 12. One member who is from a nonprofit federally mandated
38 protection and advocacy agency for this state and who is appointed by the
39 president of the senate.

40 {{13. Two members who are from a statewide association that
41 represents county supervisors, one of whom represents a county with a
42 population of at least one million persons and who is appointed by the
43 speaker of the house of representatives and one of whom represents a
44 county with a population of less than one million persons and who is
45 appointed by the president of the senate.}}

1 B. The committee shall make recommendations on the long-term
2 feasibility of secure state mental health facilities or other care models,
3 and shall:

4 1. Identify sustainable funding by analyzing and recommending
5 long-term funding sources for persons who are determined to be dangerous,
6 incompetent and nonrestorable pursuant to section 13-4521, Arizona Revised
7 Statutes, as amended by this act, including the feasibility of {{state
8 general funded, county-funded and}} federal medicaid reimbursement models.

9 2. Determine the appropriate per diem rates that are required to
10 incentivize private providers to build and operate secure state mental
11 health facilities, including accounting for specialized security and
12 high-acuity clinical staffing.

13 3. Evaluate the feasibility of privately operated secure state
14 mental health facilities versus separate and specialized secure state
15 mental health facilities operated directly by the Arizona state hospital.

16 4. Research if commitments of defendants who have been determined
17 to be dangerous, incompetent and nonrestorable pursuant to section
18 13-4521, Arizona Revised Statutes, as amended by this act, remains the
19 most appropriate legal pathway and if a modified civil commitment process
20 under title 36, Arizona Revised Statutes, provides better clinical
21 outcomes and federal funding eligibility.

22 5. Review the literature and data from this state and other
23 jurisdictions to project the growth over the next ten years of the
24 population of defendants who have been determined to be dangerous,
25 incompetent and nonrestorable pursuant to section 13-4521, Arizona Revised
26 Statutes, as amended by this act.

27 6. Evaluate the costs and logistics associated with entering into
28 an interstate compact or multistate agreement to establish an out of state
29 placement for a defendant who has been determined to be dangerous,
30 incompetent and nonrestorable pursuant to section 13-4521, Arizona Revised
31 Statutes, as amended by this act, if a bed in a secure state mental health
32 facility in this state is unavailable.

33 C. The committee may hold hearings, conduct site visits to existing
34 secure facilities and request data from the department of health services,
35 the Arizona health care cost containment system and the administrative
36 office of the courts.

37 D. Committee members are not eligible to receive compensation but
38 are eligible for reimbursement of expenses pursuant to title 38, chapter
39 4, article 2, Arizona Revised Statutes.

40 E. On or before December 31, 2026, the committee shall submit a
41 report of its findings and recommendations to the governor, the president
42 of the senate and the speaker of the house of representatives and provide
43 a copy of this report to the secretary of state.

44 F. This section is repealed from and after December 31, 2026.

45 G. For the purposes of this section, "secure state mental health
46 facility" has the same meaning prescribed in section 13-4501, Arizona
47 Revised Statutes.]]>>

1 <<Sec. 5. Department of health services: analysis: secure
2 state mental health facilities
3 [A. The department of health services shall conduct an analysis of
4 the cost to staff and construct a new secure state mental health facility
5 on the grounds of the Arizona state hospital or renovate an existing
6 structure to be converted to a secure state mental health facility on the
7 grounds of the Arizona state hospital for {{defendant}} {{defendants}} who
8 are determined to be dangerous, incompetent and nonrestorable pursuant to
9 section 13-4521, Arizona Revised Statutes, as amended by this act.
10 B. On or before November 1, 2026, the department shall submit the
11 analysis to the president of the senate, the speaker of the house of
12 representatives and the governor and provide a copy of this analysis to
13 the secretary of state.]]>>

14 <<Sec. 6. Applicability
15 [Section 13-4521, Arizona Revised Statutes, as amended by this act,
16 and section 13-4521.01, Arizona Revised Statutes, as added by this act,
17 apply retroactively to from and after December 31, 2023.]]>>

18 ~~[<ENACTED WITHOUT THE EMERGENCY>~~
19 ~~Sec. 7. Emergency~~
20 ~~This act is an emergency measure that is necessary to preserve the~~
21 ~~public peace, health or safety and is operative immediately as provided by~~
22 ~~law.]~~

23 <<Sec. 7. Emergency
24 [This act is an emergency measure that is necessary to preserve the
25 public peace, health or safety and is operative immediately as provided by
26 law.]]>>

27 Enroll and engross to conform
28 Amend title to conform

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